TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m**. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling**.

July 28, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	**Kohlman vs. Adaptive Behavior Center, Inc** **24-01449191**	1. Demurrer to Complaint 2. Motion to Strike Portions Of Complaint 3. Demurrer to Cross-Complaint Defendant Delight House, Inc. ("Defendant") filed a demurrer and motion to strike. Defendant demurs to the first cause of action for dependent adult neglect and second cause of action for dependent adult neglect (enhanced remedies sought). Defendant moves to strike "conclusory allegations of 'reckless,' 'oppressive,' 'malicious,' and 'fraudulent' conduct without alleging specific ultimate facts sufficient to support punitive damages or enhanced remedies under Welfare and Institutions Code section 15657 and Civil Code section 3294."

Plaintiff Irene Kohlman, as Successor-in-Interest and Personal Representative of the Estate of Donald Kohlman ("Plaintiff") opposed both motions.

In determining the merits of a demurrer, "we accept as true all the material facts properly pleaded and we do not go beyond the four corners of the complaint, except as to matters which may be judicially noticed." (Thorburn v. Department of Corrections (1998) 66 Cal.App.4th 1284, 1287–1288 [emphasis added].)

"A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed [citations]. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action [citation]." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.)

"The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable." (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 113–114.) "[J]udicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed." (Ibid.)

A complaint, with certain exceptions, need only contain a 'statement of the facts constituting the cause of action, in ordinary and concise language' (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ' "so long as [it] gives notice of the issues sufficient to enable preparation of a defense." ' [Citation.]" (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.)

"[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.' [Citation.]" (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) "However, ' "[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced." " (Ibid.)

"No error or defect in a pleading is to be regarded unless it affects substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) "The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Ibid.)

A. Demurrer

Defendant demurs to the first cause of action for dependent adult neglect and second cause of action for dependent adult neglect (enhanced remedies sought).

In the notice of motion, Defendant presents three arguments: (1) the complaint is barred by res judicata, (2) the first cause of action fails to state facts sufficient to constitute a cause of action and is uncertain, and (3) the second cause of action of action fails to state facts sufficient to constitute a cause of action and is uncertain.

Importantly, Defendant did not present any legal authority or analysis as to its res judicata theory. As such, the Court will not delve into an analysis of that issue. Regardless, the Court has consolidated the two cases at issue in that argument and finds that the causes of action asserted in this case are not barred by the prior filed case. The demurrer is overruled as to any res judicata theory.

		Plaintiff brings the first cause of action for dependent adult neglect pursuant to Welfare and Institutions Code sections 377.10, 377.20, 377.30, and 377.34, et seq. as well as 15610.23. Plaintiff brings the second cause of action for dependent adult neglect (enhanced remedies sought) pursuant to Welfare and Institutions Code sections 15657(a) and (b). In relation to the first cause of action, Defendant argues that "the facts alleged do not rise to the level of neglect under the Act, and Plaintiff's own sworn statements establish that the conduct alleged amounts to, at most if at all, professional negligence." As for the second cause of action, Defendant argues that the second cause of action "fails as a matter of law because it does not allege specific facts demonstrating reckless, oppressive, fraudulent, or malicious conduct as required under welfare and Institutions Code section 15657." First, the Court will not consider Plaintiff's sworn statements. As discussed in the authority above, a demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Moving to the pleadings alone, the Court finds that Plaintiff sufficiently stated a cause of action for dependent adult neglect and dependent adult neglect with enhanced remedies. Welfare and Institutions Code sections 15657(a) and (b) states: "If it is proven by clear and convincing evidence, or by a preponderance of the evidence pursuant to Section 15657.02, that a defendant is liable for physical abuse as defined in Section 15610.63, neglect as defined in Section 15610.57, or abandonment as defined in Section 15610.05, and that the defendant has been

		guilty of recklessness, oppression, fraud, or malice in the commission of this abuse, the following shall apply, in addition to all other remedies otherwise provided by law: (a) The court shall award to the plaintiff reasonable attorney's fees and costs. The term “costs” includes, but is not limited to, reasonable fees for the services of a conservator, if any, devoted to the litigation of a claim brought under this article. (b) The limitations imposed by Section 377.34 of the Code of Civil Procedure on the damages recoverable shall not apply. However, the damages recovered shall not exceed the damages permitted to be recovered pursuant to subdivision (b) of Section 3333.2 of the Civil Code.” (Welf. & Inst. Code, § 15657, subds. (a) and (b).) “When legislators enacted the Elder Abuse Act, they enhanced the potential sanctions for neglect of elders or certain dependent adults.” (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 155.) “They did so by establishing heightened remedies—allowing not only for a plaintiff's recovery of attorney fees and costs, but also exemption from the damages limitations otherwise imposed by Code of Civil Procedure section 377.34.” (Ibid.) “Unlike other actions brought by a decedent's personal representative or successor in interest, claims under the Act allow for the recovery of damages for predeath pain, suffering, and disfigurement.” (Id. [citing Welf. & Inst.Code § 15657].) “Section 15610.57, in turn, provides two definitions of neglect.” (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 156; see also Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 783.) “First, [t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.’ ” (Id. [citing § 15610.57,

		subd. (a)(1)].) "Second, '[t]he negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.'" (Id., [citing § 15610.57, subd. (a)(2)].) "Complementing these two definitions is the statute's explicitly nonexhaustive list of "neglect" examples." (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 156.) "These include failures "to assist in personal hygiene" or to provide "food, clothing, or shelter" (§ 15610.57, subd. (b)(1)); "to provide medical care for physical and mental health needs" (id., subd. (b)(2)); "to protect from health and safety hazards" (id., subd. (b)(3)); and "to prevent malnutrition or dehydration" (id., subd. (b)(4))." (Ibid.) Notably, "section 15657 is explicitly limited to physical abuse and neglect." (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 160.) "This qualification on the types of conduct that trigger heightened remedies supports the conclusion that the Legislature explicitly targeted heightened remedies to protect particularly vulnerable and reliant elders and dependent adults. Indeed, the limited availability of heightened remedies is indicative of a determination that individuals responsible for attending to the basic needs of elders and dependent adults that are unable to care for themselves should be subject to greater liability where those caretakers or custodians act with recklessness, oppression, fraud, or malice." (Id. [citing § 15657].) "The statutory scheme further persuades us that the concept of neglect—though broad enough to encompass settings beyond residential care facilities—is not intended to apply to any conceivable negligent conduct that might adversely impact an elder or dependent adult." (Ibid.) "Instead, neglect requires a caretaking or custodial relationship that arises where an elder or dependent adult depends on another for the provision of some or all of his or her fundamental needs." (Ibid.)

		Here, Plaintiff alleges the requisite caretaking or custodial relationship between Defendant and the Decedent. (Complaint, ¶¶ 1-3, 31.) Plaintiff further alleges that Defendant neglected Decedent by: (a) entirely ignoring their obligations to perform basic assessments and to provide custodial care with respect to choke prevention; (b) failing to timely respond after Decedent choked in their custody previously, and properly assess and evaluate his condition; (c) failing to properly monitor and assess Decedent for changes in his overall health condition and to inform his doctor; (d) assisting in the provision of food; (e) communicating vital health and safety information to his other caretakers, and; (f) protecting him from health and safety hazards. (Complaint, ¶¶ 24, 26, 27, 32, and 40.) Such allegations constitute failures "to protect from health and safety hazards," which is neglect under the Act. Plaintiff further alleges that Defendant, by way of its officers, directors, and/or managing agents, has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse. (Complaint, ¶¶ 40-46.) Accordingly, Plaintiff has sufficiently pleaded dependent adult neglect and dependent adult neglect with enhanced remedies. The Demurrer is OVERRULED in its entirety. B. Motion to Strike Defendant moves to strike "conclusory allegations of 'reckless,' 'oppressive,' 'malicious,' and 'fraudulent' conduct without alleging specific ultimate facts sufficient to support punitive damages or enhanced remedies under Welfare and Institutions Code section 15657 and Civil Code section 3294." Civil Code section 3294 states: "(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and

		convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. (b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." Importantly, corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive." (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167.) "An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees," such as the corporation's officers, directors, or managing agents. (Id.) For the reasons discussed above regarding the arguments raised in the Demurrer, the Motion to Strike is DENIED. Plaintiff has sufficiently alleged the requisite malice, oppression, and recklessness among Defendant's managing agents. (See Complaint, ¶¶ 44-46.) Defendant shall file an answer to the Complaint within 20 days. Plaintiff to give notice.

		<u>Demurrer to Cross Complaint</u> Defendant Adaptive Behavior Center, Inc. ("Cross-Defendant") demurs to the first cause of action for equitable indemnity, second cause of action for apportionment of fault, third cause of action for contribution, fourth cause of action for total indemnity, fifth cause of action for declaratory relief, and sixth cause of action for negligence as alleged in the Cross-Complaint filed by Cross-Complainant Delight House Inc. on 03/23/2026. This Cross-Complaint was ROA 34 in Case No. 2025 01524511 and is now ROA 232 since Case Nos. 2024 01449191 and 2025 01524511 were consolidated. Cross-Complainant/Defendant Delight House, Inc. filed an opposition to this demurrer on 07/15/2026. (See Case No. 2024 01449191, ROA 262.) The proof of service attached to this opposition shows that Cross-Defendant was served by email on 07/15/2026. Cross-Defendant filed a notice of non-opposition. (See ROA 266.) On July 21, 2026, Cross-Complainant Delight House, Inc. filed a declaration, stating that Cross-Defendant was, by mistake, not served with the opposition to the motion. (ROA 278.) Given the above, the hearing on this demurrer is CONTINUED TO _8/11/26_____. Cross-Defendant shall file a reply no later than 5 court days before the continued hearing.

102	**JPMorgan Chase Bank, N.A. vs. LJT Holdings II LLC** **25-01514141**	Motion to Be Relieved as Counsel of Record John P. Swenson, Janae L. Hill, and Arden Burstein ("Moving Counsel") move to be relieved as Counsel of Record for Defendant LJT Holdings II, LLC. The instant motion to be relieved as counsel originally came on for hearing on June 16, 2026. On June 16, 2026, the Court continued the motion to July 28, 2026, and ordered Moving Counsel to file proof of service of the moving papers on the client no later than nine (9) court days before the continued hearing date. (ROA 26.) The Court also ordered the moving party to give notice. (Ibid.) Accordingly, proof of service of the moving papers on the client was due by July 15, 2026. As of July 21, 2026, no proof of service has been filed. Additionally, there is no showing that Moving Counsel gave notice of the continuance. Based on the foregoing, the motion to be relieved as counsel of record is DENIED, without prejudice. Moving Counsel to give notice.
103	**Ratliff vs. Ponce** **22-01255666**	Motion to Be Relieved as Counsel of Record x 2 Sarah F. Hinks ("Moving Attorney") moves to be relieved as counsel of record for plaintiffs James Ratliff and Vicki Ratliff. The motions are unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. The moving papers were served on the clients' last known address by mail as well as by email. However, the proof of service does not indicate that all other parties have been served, as required by California Rules of Court, Rule 3.1362(d). Moving Attorney is ordered to provide proof of service of the moving papers at or before the hearing. If Moving Attorney

		shows that the moving papers were properly served on all parties, the motions will be GRANTED. The orders relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the clients and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice
105	**Beltran vs. Universal Care, Inc.** **22-01269141**	Motion to Lift Stay and Restore Case Plaintiff Dr. Robert Beltran, M.D. moves for an order lifting the stay imposed when the Court ordered arbitration and restoring the case to the active civil docket. The motion is GRANTED. "In an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, that the drafting party pay certain fees and costs during the pendency of an arbitration proceeding, if the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the due date, the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel the employee or consumer to proceed with that arbitration as a result of the material breach." (CCP § 1281.98(a)(1).) In Hohenshelt v. Superior Ct., the California Supreme Court held that the penalties for failure to make timely payments of arbitration fees under Section 1281.98 could be subject to relief under certain circumstances of good faith conduct and excusable neglect. More specifically, a "drafting party can avoid forfeiture of its right to arbitration by showing that the delay was excusable under section 473, Civil Code section 3275, or Civil Code section 1511, the background principles that generally apply to other contractual obligations."

		(Hohenshelt v. Superior Ct. (2025) 18 Cal. 5th 310, 343.) The Court cautioned, however, that "[w]hen a party breaches its contractual obligations willfully, fraudulently, or with gross negligence, it cannot escape the consequences by pointing to a lack of harm to the other party." (Id. at 346.) Here, the parties were ordered to arbitration of this employment dispute on 9/25/23 pursuant to a joint stipulation. (ROA 37.) The arbitration agreement requires the employer to pay all fees and expenses of the Arbitrator. (Pl. Exh. 1 at ¶ 3.) The parties do not dispute that Defendant paid a non-refundable fee of $2,000 to JAMS on 1/29/24 and a retainer fee of $12,000 on 4/17/24. (Oppn at 2:12-16.) On 12/13/25, JAMS sent an invoice for an arbitration reservation of 8/17-8/21/26. The invoice, which was dated 12/12/25, was due upon receipt. (Pl. Exh. 2; Deft. Exh. C.) Defendant does not deny that the invoice was never paid. Sixty-one days later, on 2/11/26, another invoice was issued for the same amount. (Pl. Exh. 3.) Defendant does not deny that it never paid this invoice either, although it contends that the invoice was reversed on 2/25/26. (Deft. Exh. D.) On 4/18/26, another invoice was issued, again for the same amount and also due upon receipt. On 5/12/26 (24 days after this latest invoice issued), Plaintiff filed the instant motion. JAMS suspended administration of the matter on 5/28/26 at Plaintiff's request. (Oppn at 3:24-4:1; Reply at 3:24-25.) Defendant filed its opposition to this motion on 7/15/26, which was more than 30 days after the 5/12/26 invoice issuedp and made no indication that the invoice had been paid. Plaintiff's reply also confirms that the fee was never paid. (Reply at 3:21-23.) In addition to failing to dispute that the invoices were not paid within 30 days, Defendant makes no representation that has any intention of paying the fee. Rather, Defendant merely asks the Court to continue

		the stay until the parties complete their scheduled mediation on 9/15/26. Defendant offers perfunctory excuses for failing to pay, in that the case transitioned between defense firms and amongst different attorneys within those firms; and the insurance carrier representative went out on leave in April 2026. (Oppn at 3:2-3:12.) However, no declaration is offered to support any of these arguments, nor are any specifics given explaining in detail how or why the payment was not made. Thus, it appears to the Court that Defendant's failure to pay was willful. (See People v. Bollaert (2016) 248 Cal. App. 4th 699, 710 ("[T]he word 'willfully' as generally used in the law is a synonym for 'intentionally,' . . . and 'implies no evil intent[,] 'it implies that the person knows what he is doing, intends to do what he is doing and is a free agent.'").) Accordingly, the motion is GRANTED. The stay is lifted. Sanctions shall be addressed by way of separate motion to be brought by Plaintiff pursuant to CCP §1281.98(c). (See also CCP §1281.99.) Plaintiff to give notice.
106	**Bunker Hill Apartments, LLC vs. GMS Group Inc.** **25-01505195**	Motion for an Order Discharging and Dismissing Escrow from Case, and Order Escrow to Deposit Interpleaded Funds Defendant La Costa Escrow, Inc. ("La Costa") seeks to interplead funds in the amount of $958,843.27, less La Costa's attorney fees and escrow fees, and an order discharging La Costa from liability and dismissing it from this action. This action involves the sale of real property by plaintiffs Bunker Hill Apartments LLC and Tony Holder ("Plaintiffs") to GMS Group Inc. ("GMS"). La

		Costa was designated as the escrow holder for the transaction. La Costa was notified that the sale was being canceled but did not receive mutually signed instructions from the parties. La Costa has no interest in or claim to the funds. (Declaration of Lauri Shahar ¶ 2.) Interpleader is a procedure whereby a person holding money or personal property to which conflicting claims are being made by others, can join the adverse claimants and force them to litigate their claims among themselves. (City of Morgan Hill v. Brown (1999) 71 Cal.App.4th 1114, 1122.) Once the stakeholder's right to interplead is established, and he or she deposits the money or personal property in court, he or she may be discharged from liability to any of the claimants. This enables the stakeholder to avoid multiplicity of actions and the risk of inconsistent results if each of the claimants were to sue him or her separately. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 874.) Code of Civil Procedure section 386.5 provides: Where the only relief sought against one of the defendants is the payment of a stated amount of money alleged to be wrongfully withheld, such defendant may, upon affidavit that he is a mere stakeholder with no interest in the amount or any portion thereof and that conflicting demands have been made upon him for the amount by parties to the action, upon notice to such parties, apply to the court for an order discharging him from liability and dismissing him from the action on his depositing with the clerk of the court the amount in dispute and the court may, in its discretion, make such order. "It is the stakeholder's avowed disinterest in the interpleaded proceeds which gives him the right to interplead." (Pacific Loan Management Corp. v. Superior Court (1987) 196 Cal.App.3d 1485, 1489.) "[C]ases [have] made [it] clear that a typical situation suitable for interpleader is that where a disinterested

		escrow holder faces conflicting claims to the escrowed property." (Ibid.) This includes a situation where "one claimant notified the escrow holder that the contract was canceled and nothing should be paid to the other claimant[,]" (Id. at p. 1490.) "Further, interpleader may be permitted even though one claimant seeks part of the fund and the other claimant seeks the entire fund amount." (Morgan Hill, 71 Cal.App.4th 1114, 1123.) Plaintiffs allege they received multiple offers and relied upon a fabricated proof of funds reflecting an account balance exceeding $30 million in accepting GMS's purchase offer. They further allege that GMS failed to wire the full purchase price before the June 23 foreclosure sale date and Plaintiffs thereafter lawfully canceled the purchase agreement. Plaintiffs allege that they suffered the following damages because of GMS's breach and fraud: earnest money deposit of $27,000; extension deposit of $50,000; foreclosure rescue funds of $65,708.94; loan repayment of $515,000; lost equity of $293,000; and additional wires to buy out former LLC members, for a total damages claim of $958,708.94. Dr. Mohammed Khalid Haridy Ghafeer alleges that he deposited $958,843.27 into escrow with La Costa for the purchase of the property on behalf of GMS. Dr. Ghafeer alleges that $30,000 was delivered on May 1, 2025, $50,000 was delivered pursuant to an agreement between Plaintiffs and GMS to extend the close of escrow, $500,000 and $305,000 were deposited on June 25, 2025, and $73,843.27 was deposited on June 26, 2025. Dr. Ghafeer further alleges that Plaintiffs have asserted that they are entitled to the $958,843.27 held by La Costa and that the money should be released to them, which Dr. Ghafeer asserts is wrongful. Dr. Ghafeer argues that this Court held on June 16, 2026, that Plaintiffs are not entitled to the escrow funds. This is incorrect. The Court merely held that Plaintiffs had not demonstrated that the funds are due to them in support of their own Motion. Further, while

		the $1.27 million in losses claimed by Plaintiffs in support of their own Motion for carrying costs, equity loss, and money paid to stop the foreclosure sale are not claims related to the escrow funds, it is clear by their refusal to release the funds to Dr. Ghafeer that they claim entitlement to at least a portion, which is sufficient to support the requested interpleader. Thus, the Court finds that Plaintiffs and Dr. Ghafeer have competing claims to the escrow funds held by La Costa. Dr. Ghafeer further argues that the Court should authorize the release of the escrow funds to him, as there is no dispute that he supplied them. However, Dr. Ghafeer ignores the fact that Plaintiffs may be entitled to keep all or some portion of the deposit under the sales contract pursuant to the liquidated damages clause included therein, which Dr. Ghafeer acknowledges in his own complaint-in-intervention, if Plaintiffs can prove that Dr. Ghafeer was a buyer in default. Thus, this argument is rejected. La Costa requests escrow fees and costs totaling $9,417.49. No parties dispute this amount. La Costa also requests $9,603.12 in attorney fees. "In ordering the discharge of such party, the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6(a).) Plaintiffs argue the attorney fees should not be granted because the statute requires that the funds be deposited and the party discharged before any discretionary attorney fees are awarded. Plaintiffs cite Wells Fargo Bank, N.A. v. Zinnel (2004) 125 Cal.App.4th 393, where the Court of Appeal held that attorney fees under section 386.6 could not be awarded because the interpleader plaintiff released the funds to a defendant instead of depositing them with the court and fees could be awarded only out of deposited funds. (Id. at p.

		403.) This case is inapposite, as La Costa has not sought an order for it to release the funds to any party and, unlike in Zinnel, seeks to deposit the funds with the Court. Plaintiffs further argue that La Costa improperly seeks reimbursement for fees that go beyond pursuit of the interpleader and the requested fees should be reduced. The Court agrees that anticipated fees and costs that have not yet been incurred should not be included in the award but finds the remaining fees and costs to be proper. In light of the above, La Costa's Motion for Interpleader is GRANTED. La Costa is ordered to deposit with the court clerk the escrow funds of 958,843.27 less the escrow fees and costs in the amount of $9,417.49 and attorney fees and costs in the amount of $7,428.12. Upon the ordered deposit, La Costa shall be discharged from liability to either party and dismissed from this action. Moving party to give notice.
107	**Child vs. Department of Motor Vehicles** **25-01529954**	Petition for Writ of Mandate On 11/26/2025 Petitioner Joshua Child filed an Alternative Writ of Mandate. On 5/20/2026 pursuant to Chambers Work- CMC, this Court set the Petition for Writ for 7/28/2026 and ordered Petitioner to give notice. (ROA 13). To date, there is nothing in the Court's file to indicate Plaintiff/Petitioner gave notice to Defendant of the hearing date. Furthermore, there is no certified administrative record before the Court (Govt. Code § 11523), or points and authorities in support of the Petition (Rules of Court, rule 3.1113). As such, the Court denies the writ of mandate.

108	**Hernandez-Magana vs. Volkswagen Group of America, Inc.** **24-01450948**	Motion to Tax Costs Defendant Volkswagen Group of America, Inc. ("Defendant") moves to strike or tax costs in plaintiffs Sharon Hernandez-Magana and Jonathan Hernandez-Magana's ("Plaintiffs") Memorandum of Costs. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) "If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the plaintiff." (Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 698.) "The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation.] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.) First, the Motion is GRANTED as to the $295.00 late fee for January 28, 2026, as Plaintiffs concede that this cost was not reasonably incurred. As to the $453.45 in costs for the July 2, 2025, notice of non-appearance, costs for taking, video recording, and transcribing necessary depositions are recoverable. (Code Civ. Proc., § 1033.5(a)(3)(A).) Thus, it is Defendant's burden to show this cost to be unnecessary and unreasonable. Defendant argues it was unnecessary and unreasonable because Plaintiffs unilaterally noticed the deposition and Defendant timely objected. However, Defendant has not provided any evidence regarding its timely objection. Thus, Defendant has not met its burden as the objecting party to show that this

		cost was unnecessary or unreasonable. Thus, as to the $453.45 under Item 4, the Motion is DENIED. Moving party to give notice.
109	**Jones vs. Soderling** **18-01037445**	Motion to Tax Costs x 3 Motion to Tax Costs as to Defendant, Tieback Holdings, LLC Plaintiffs Kimberly Moffatt Jones and 150 Newport Center Drive, LLC ("Plaintiffs"), move to tax costs in the amount of $6,537.42 claimed by Defendant, Tieback Holdings, LLC ("Tieback"). "A party's right to recover costs is governed entirely by statute. [Citation.]" (Boonyarit v. Payless Shoesource, Inc. (2006) 145 Cal.App.4th 1188, 1192.) "To obtain costs, a party must comply with the applicable rules of court. [Citation.]" (Ibid.) "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (California Rules of Court, rule 3.1700(a)(1).) Here, notice of entry of judgment was filed on April 28, 2026, and served on April 27, 2026, via electronic transmission. (ROA 2764.) Therefore, a memorandum of costs was required to be filed by May 12, 2026 (15 days after April 17, 2026).

		Plaintiffs provide that on or about April 30, 2026, Defendant Tieback Holdings, LLC ("Tieback") served and filed a Memorandum of Costs seeking costs in the amount of $6,537.42. (Declaration of Nicholas Lauber ("Lauber Decl."), ¶ 6, Ex. B.) However, the proof of service attached to Tieback's Memorandum of Costs indicates it was served on May 6, 2026, by electronic service. (Ex. B to Lauber Decl.) More importantly, while the Memorandum of Costs may have been served, no Memorandum of Costs by Tieback appears in the Court's file, either on April 30, 2026, May 6, 2026, or otherwise. "[I]f a claimant fails to present a cost bill, a waiver of the right to costs results. The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory. [Citation.]" (Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co. (1990) 223 Cal.App.3d 924, 929; see also Kaufman v. Diskeeper Corp. (2014) 229 Cal.App.4th 1, 6, fn. 2 ["We agree with the trial court that Diskeeper was required to file a memorandum of costs in order to recover the other costs and expenses it sought, and that Diskeeper's failure to do so worked a forfeiture regarding them"].) Consequently, a waiver of the right to costs results. Based on the foregoing, due to Tieback's failure to timely file its Memorandum of Costs, it waived the right to costs. Plaintiffs' motion to tax costs claimed by Tieback is GRANTED. Additionally, Tieback has filed a non-opposition indicating that it offers no opposition to Plaintiffs' motion to tax costs. Motion to Tax Costs as to Defendant, Newport Center Anacapa Associates, LLC Plaintiffs, Kimberly Moffatt Jones and 150 Newport Center Drive, LLC ("150 NCD") (collectively, "Plaintiffs"), move to tax costs in the amount of $356,119.76 claimed by Defendant, Newport Center

		Anacapa Associates, LLC ("NCAA"). The Motion is GRANTED, in part, DENIED, in part, as follows. Timeliness of Motion NCAA first contends that the Plaintiffs' motion to tax costs should be denied as it is untimely. Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum and is extended as provided in Code of Civil Procedure section 1013 (five days for mail), and in Code of Civil Procedure section 1010.6(a)(3) (two court days for electronic service). (California Rules of Court, Rule 3.1700(b)(1).) Parties may agree in writing to extend this deadline, or absent the parties' stipulation, the court may extend the deadline for a period not to exceed 30 days. (California Rules of Court, rule 3.1700(b)(3).) Contrary to NCAA's contention that its Memorandum of Costs was served by electronic mail, the proof of service attached to the Memorandum of Costs indicates that it was served only by mail on April 30, 2026. (ROA 2766.) Since Plaintiffs' motion to tax costs was filed and served on May 19, 2026, it was timely filed within 15 days after service of the cost memorandum, plus a five-day extension for mail. Even assuming the Memorandum of Costs was served by electronic mail on April 30, 2026, the motion was timely filed within 15 days after service of the cost memorandum, plus a two-court-day extension for electronic service. Merits " 'The right to recover any of the costs of a civil action "is determined entirely by statute." ' [Citation.]" (Charton v. Harkey (2016) 247 Cal.App.4th 730, 737.) " 'Section 1032 governs the award of costs of trial court litigation.' [Citation.]" (Ibid.) The prevailing party is entitled in any action or proceeding. (Code Civ. Proc. § 1032(b).) Therefore, the prevailing party is

		entitled to all of his costs unless another statute provides otherwise. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 129.) Section 1032, subdivision (a)(4), defines who is the prevailing party entitled to costs," and the first sentence of that subdivision " 'describes four categories of litigants who automatically qualify as prevailing parties . . . .' [Citations.]" (Charton v. Harkey (2016) 247 Cal.App.4th 730, 737 ("Charton").) A "prevailing party" is defined to include "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not ...." (Code Civ. Proc. § 1032(a)(4).) " '[T]he trial court has no discretion to deny prevailing party status to a litigant who falls within one of the four statutory categories in the first [sentence] of the provision . . . ." ' [Citations].) (Charton, supra, 247 Cal.App.4th at p. 738.) " ' "Where the prevailing party is one not specified [in these four categories, the second sentence of] section 1032, subdivision (a)(4) permits the trial court to determine the prevailing party and then allow costs or not, or to apportion costs, in its discretion. The statute requires the trial court to determine which party is prevailing and then exercise its discretion in awarding costs." . . . [¶.] This prong of the statute thus calls for the trial court to exercise its discretion both in determining the prevailing party and in allowing, denying, or apportioning costs. It operates as an express statutory exception to the general rule that a prevailing party is entitled to costs as a matter of right.' [Citation.]" (Ibid.) "In these situations, 'the trial court in its discretion determines the prevailing party,

		comparing the relief sought with that obtained, along with the parties' litigation objectives as disclosed by their pleadings, briefs, and other such sources.' [Citation.] Thus, the trial court determines whether the party succeeded at a practical level by realizing its litigation objectives [citation] and the action yielded the primary relief sought in the case [citation]. (Friends of Spring Street v. Nevada City (2019) 33 Cal.App.5th 1092, 1104.) Here, NCAA is the prevailing party as to Plaintiffs' Complaint and First Amended Complaint. Plaintiffs asserted a single cause of action for judicial dissolution against NCAA, and the Court granted summary adjudication in NCAA's favor. (ROA 2838, Declaration on Aaron M. McKown ("McKown Decl."), ¶ 4.) As to NCAA's crossclaims, on the eve of trial, Judge Gastelum bifurcated NCAA's crossclaims, which were equitable in nature, and ordered that trial first proceed on those claims. (McKown Decl., ¶ 6, Ex. E.) Judge Gastelum retired from the bench prior to the trial date, and after Judge Gastelum was placed on the trial-trailing list, all parties stipulated to the appointment of Judge Margines as the judge pro tem for the bench trial on NCAA's crossclaims. (Ibid.) On May 15, 2025, Judge Margines issued a final Statement of Decision as to NCAA's four causes of action in its Cross-Complaint against 150 NC for declaratory relief, breach of contract, specific performance, and declaratory relief. (Ex. F to McKown Decl., Statement of Decision, 2:17-3:10.) Judge Margines found in favor of NCAA as to the first and second causes of action and declared that 150 NCD became a disassociated or "Involuntary Withdrawn" member of NCAA as of December 14, 2018 and granted a preliminary and permanent injunction preventing Plaintiffs from noticing any meetings of the members, among other things. (Id. 18:23-19:12.) As to the third cause of action for anticipatory breach of contract/specific

		performance, the Court found in favor of 150 NCD and ordered a reappraisal of the fair market value of 150 NCD's membership interest in NCAA to take place pursuant to the provisions of Corporations Code section 17707.03 for purchase by NCAA. (Id., 19:13-20:16.) As to the fourth cause of action for declaratory relief, the Court found that the Operating Agreement's procedure for acquiring 150 NCD's membership interest was not controlling and thus found in favor of 150 NCD and exercised its equitable powers and ordered a re-appraisal of the fair market value of 150 NCD's membership interest as stated above. (Id., 20:17-24.) NCAA's third cause of action in its cross-complaint against 150 NCD for specific performance sought an order requiring 150 NCD to sell its membership interests to NCAA pursuant to the procedure set forth in Article VI of the Operating Agreement, and the fourth cause of action in NCAA's cross-complaint against 150 NCD for declaratory relief sought a declaration regarding the ongoing rights and obligations of the parties, and specifically, whether the procedure for purchasing 150 NCD's membership interest is the one set forth in the Operating Agreement because no grounds for judicial dissolution exist or whether the procedure for purchasing 150 NCD's interest is the one set forth under Corporations Code section 17707.03(c). (Id., 3:3-10.) Although Judge Margines exercised his discretion and ordered the reappraisal to take place pursuant to the provisions of Corporations Code section 17707.03 instead of the Operating Agreement, NCAA ultimately received substantially all of the relief that it sought by way of the third and fourth cross-claims, and obtained the primary relief sought by way of its cross-claims. Based on the foregoing, NCAA is the prevailing party and entitled to costs. Plaintiffs do not dispute that NCAA is the prevailing party. To the extent that Plaintiffs argue that the entire Memorandum of Costs should be taxed or stricken on the grounds that NCAA did not attach invoices,

		receipts, declarations, itemized summaries, or any meaningful explanation sufficient to permit judicial review, NCAA is not required to do so. "There is no requirement that copies of bills, invoices, statements, or any such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted. [Citation.] Once this occurs, the issue becomes whether the required documentation must be of evidentiary quality." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) Second, to the extent that Plaintiffs seek to tax all costs claimed on the ground that NCAA did not distinguish between costs incurred in what Plaintiffs describe as "Phase I" and "Phase II", Plaintiffs fail to show that NCAA incurred costs in both the bench trial and jury trial. Instead, NCAA provides that because NCAA had already obtained summary judgment in its favor on Plaintiffs' claims, NCAA was not a party to the subsequent jury trial, and NCAA incurred no costs related to the jury trial, and thus, that none of the costs identified in its Memorandum of Costs relate to the jury trial. (McKown Decl., ¶ 12.) Based on the foregoing, Plaintiffs' request to tax the entire cost memorandum is DENIED. Item Nos. 1, 5, and 14 In their motion, Plaintiffs do not separately identify objections to Item No. 1 (filing and motion fees in the amount of $3,532.50), Item No. 5 (service of process costs in the amount of $77.99), or Item No. 14 (electronic filing and service fees in the amount of $1,496.40). As such, the Memorandum of Costs is prima facie evidence of their propriety, and Plaintiffs fail to meet their burden as the parties seeking to tax costs to show these costs were not reasonable or necessary. Thus, the Court DENIES Plaintiffs' motion to tax as to Item Nos. 1, 5, and 14.

		Item No. 9 (corrected to No. 11) – Court-ordered transcripts / Court reporter fees as established by statute NCAA first provides that costs in the amount of $12,271.74 were mistakenly identified as Category No. 9 when, in fact, it should have been listed as Category No. 11, as these costs relate to the cost of the court reporter at the 3-day bench trial, which total $12,271.74. Code of Civil Procedure section 1033.5, subdivision (a) sets forth the items that are allowable as costs. Costs are allowable if incurred, whether paid, and allowable costs shall be reasonable in amount and “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc. § 1033.5(c)(1)-(3).) “[A]ny award of costs – whether categorically recoverable under section 1033.5, subdivision (a) or allowable in the court’s discretion under section 1033.5(c)(4) – must meet the requirements of subdivision (c)(2) and (3).” (Segal v. Asics Am. Corp. (2022) 12 Cal.5th 651, 667.) Court reporter fees as established by statute are allowable as costs. (Code Civ. Proc. § 1033.5(a)(11).) Government Code section 68086 states, in part: (d) The Judicial Council shall adopt rules to ensure all of the following: (1) That parties are given adequate and timely notice of the availability of an official court reporter. (2) That if an official court reporter is not available, a party may arrange for, at the party's expense, the presence of a certified shorthand reporter to serve as an official pro tempore reporter. At the arranging party's request, the court shall appoint the certified shorthand reporter to be present in the courtroom and serve as the official reporter pro tempore unless there is good cause shown for the court to refuse that appointment. The fees and charges of the certified shorthand reporter

		shall be recoverable as taxable costs by the prevailing party as otherwise provided by law. (3) That if the services of an official pro tempore reporter are utilized pursuant to paragraph (2), no other charge shall be made to the parties. (e) The fees collected pursuant to this section shall be used only to pay the cost for services of an official court reporter in civil proceedings. (Gov. Code, § 68086(d)-(e).) Government Code section 68086(c) also states that "[t]he costs for the services of the official court reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law." Code of Civil Procedure section 1033.5(a)(11) allows court reporter fees as established by statute. Court reporter fees under Section 1033.5(a)(11) are distinguishable from transcripts. (See Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 58 [finding court reporter fees are an entirely different expense from "transcripts of court proceedings not ordered by the court," noting that the parties have to pay the court reporter regardless of whether anyone orders transcripts, and affirming order denying motion to tax costs].) Code of Civil Procedure section 1033.5(b)(5) disallows "transcripts of court proceedings not ordered by the court," unless expressly authorized by law. In a civil case, unless there is an express order by the court directing the preparation of a daily transcript of proceedings, the general rule of Government Code section 69953 prevails. (Spellens v. Spellens (1957) 49 Cal.2d 210, 226-227, fn. 6; Moore v. City & County of San Francisco (1970) 5 Cal.App.3d 728, 739-740 [no abuse of discretion in disallowance of expenditures for daily transcript as costs].) Under Government Code section 69953, "the fees of the court reporter for the

		preparation of a daily transcript, used for the trial, are not a proper item of costs unless such transcript has been expressly ordered by the court. [Citations.]" (Walton v. Bank of Calif., Nat'l Ass'n (1963) 218 Cal.App.2d 527, 547-548 [finding error where trial court denied plaintiff's motion to tax costs as to daily transcript of proceedings where there was no court order requiring the preparation of the transcript].) NCAA provides that it attaches true and correct copies of the invoices reflecting costs in the amount of $12,271.74 as court reporter's fees at the bench trial, as allowable under Code of Civil Procedure section 1033.5(a)(11). (McKown Decl., ¶ 13, Ex. K.) There are three invoices, one dated 9/3/24 totaling $5,493.65, a second dated 9/6/24 totaling $ 2,368.20, and a third dated 9/6/24 totaling $4,409.86. Each invoice explicitly indicates that each of these totals includes transcripts. NCAA does not submit any evidence showing that transcripts of the bench trial were ordered by the court, or that they are expressly authorized by law. Consequently, NCAA is not entitled to costs for transcripts and is only entitled to court reporter fees. The court reporter fees for the first invoice dated 9/3/24 total $981.25 ($ 725 + $250 + $6.25). The court reporter fees for the second invoice dated 9/6/24 total $982.50 ($ 725 + $250 + $7.50). Lastly, the court reporter fees for the third invoice dated 9/6/24 are $981.26 ($725+$250+$6.26). Thus, NCAA is entitled to costs for court reporter fees (Item No. 11) in the total amount of $2,945.01. In turn, the Court GRANTS the motion to tax corrected court reporter fees (Item No. 11) in the amount of $9,326.73 ($12,271.74-$2,945.01), and to DENIES the motion to tax $2,945.01. Item No. 15 – Other Plaintiffs object to "Other" costs which, as claimed in NCAA Memorandum of Costs, total $338,741.13.

		Plaintiffs contend that NCAA provides no invoices, receipts, declarations, itemized summaries, or explanation whatsoever concerning the nature of those expenses such that the Court cannot determine whether these costs are recoverable, reasonable, necessary, or duplicative, and that NCAA failed to meet its burden of establishing that the requested "Other" costs were recoverable under section 1033.5. Thus, Plaintiffs assert that NCAA's claimed "Other" costs should be taxed in their entirety or, at a minimum, substantially reduced. In response, the NCAA initially corrects the total, stating that the Memorandum of Costs stated \$338,741.13, but the actual total is \$328,741.13. NCAA asserts that this category of costs consists of the fees charged by JAMS for the bench trial as well as the fees charged by the appraisers used by the parties to value 150 NCD's membership interests, and that both of these costs were necessary and reasonable. Items not mentioned in Code of Civil Procedure section 1033.5 may be allowed or denied in the court's discretion. (Code Civ. Proc. § 1033.5(c)(4).) "[A]ny award of costs – whether categorically recoverable under section 1033.5, subdivision (a) or allowable in the court's discretion under section 1033.5(c)(4) – must meet the requirements of subdivision (c)(2) and (3)." (Segal v. Asics Am. Corp. (2022) 12 Cal.5th 651, 667.) Allowable costs shall be reasonably necessary for the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc. § 1033.5(c)(2)-(3).) The requirement that claimed costs be reasonable does not necessarily require that the costs be the very lowest. (Landwatch San Luis Obispo County v. Cambria Community Services District (2018) 25 Cal.App.5th 638, 646.) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court. (Ladas v. California State Auto. Assn. (1993) 19

		Cal.App.4th 761, 774, internal citations omitted.) "[B]ecause the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized." (Ibid., internal citations omitted.) Here, Plaintiffs properly put at issue the "Other" costs claimed by NCAA. NCAA has submitted documentation to support costs for the appointment of Judge Margines in the amount of $34,650, and costs for the reappraisal process ordered by Judge Margines in the amount of $294,091.13. As set forth above, prior to the trial date, Judge Gastelum retired from the bench, the parties were placed on the wheel, and after several weeks without being assigned to a court for trial, all of the parties stipulated to the appointment of Judge Margines as the judge pro tem for the bench trial on NCAA's cross-claims. (McKown Decl., ¶ 6, Ex. E.) While the invoices attached as Exhibit J to NCAA's counsel's declaration totals $44,650 ($8,000+$9,500+$27,150), NCAA provides that the cost to NCAA for Judge Margines was $34,650. (McKown Decl., ¶ 11, Ex. J.) While the appointment of Judge Margines expedited the bench trial, the evidence submitted does not show that this cost is reasonably necessary to the conduct of the litigation as opposed to merely convenient or beneficial to its preparation. The Court GRANTS the motion to tax $34,650 for the cost of the appointment of Judge Margines as judge pro tem. With regard to the appraisal of shares, NCAA provides that it incurred $16,814.37 for a Qualified Appraiser (Kidder Mathews) to appraise the value of 150 NCD's membership interests, pursuant to NCAA's Operating Agreement. (McKown Decl., ¶ 4, Ex. C.) Given that Judge Margines ordered a reappraisal pursuant to Corporations Code section 17707.03 instead of the Operating Agreement, it does not appear that this cost was reasonably necessary to the conduct of the

		litigation. Therefore, the Court GRANTS the motion to tax in the amount of $16,814.37. As to costs for the reappraisal ordered by Judge Margines, NCAA provides that three appraisers were appointed by Judge Margines; that the cost for Plaintiffs' proposed appraiser of John Taylor of Alvarez & Marsal was $209,301.76; that the cost for NCAA's proposed appraisers was $32,975 for Dennis Webb of Primus Valuations and $35,000 for James Malm of Hawran & Malm. (McKown Decl., ¶¶ 9-10, Exs. G-I.) The total cost for the reappraisal is therefore $277,573.76. However, with regard to the reappraisal of the fair market value of 150 NCD's membership interest in NCAA as of the date of Mr. Van Eck's appraisal report, February 28, 2019, as ordered by Judge Margines, the Court notes that the Statement of Decision expressly states, "[t]he cost of the re-appraisal shall be borne by Cross-Complainant." (Ex. F to McKown Decl., 19:17-20.) The Court GRANTS the motion to tax the costs incurred for the reappraisal in the amount of $277,573.76. Based on the foregoing, the Court GRANTS the motion to tax $294,091.13 ($34,650+$277,573.76), which relates to costs for an appraisal and reappraisal, as well as $34,650, which is the cost for appointing Judge Margines as judge pro tem for the bench trial. In other words, the Court GRANTS the motion to tax the entire correct amount of $328,741.13 for "Other" costs under Item No. 15. Motion to Tax Costs as to Defendants, Estate of Ronald Soderling, Soderling Living Trust, Tod W. Ridgeway, Tieback Holdings, LLC, and Ridgeway Development Company, Ltd. Plaintiffs Kimberly Moffatt Jones and 150 Newport Center Drive, LLC ("150 NCD") (collectively, "Plaintiffs"), move to tax costs in the amount of

		$149,267.71 claimed by Defendants, Ronald Soderling, individually and as trustee of the Soderling Living Trust, the Soderling Living Trust, Tod W. Ridgeway, and Ridgeway Development Company, Ltd. (collectively, the Soderling and Ridgeway Defendants). Timeliness of Motion Contrary to the Soderling and Ridgeway Defendants' contention that their Memorandum of Costs was served by electronic mail, the proof of service attached to the Memorandum of Costs indicates that it was served only by mail on April 30, 2026. (ROA 2768.) Since Plaintiffs' motion to tax costs was filed and served on May 19, 2026, it was timely filed within 15 days after service of the cost memorandum, plus a five-day extension for mail. Even assuming the Memorandum of Costs was served by electronic mail on April 30, 2026, the motion was timely filed within 15 days after service of the cost memorandum, plus a two-court-day extension for electronic service. Merits " 'The right to recover any of the costs of a civil action "is determined entirely by statute." ' [Citation.]" (Charton v. Harkey (2016) 247 Cal.App.4th 730, 737.) " 'Section 1032 governs the award of costs of trial court litigation.' [Citation.]" (Ibid.) The prevailing party is entitled to costs as a matter of right in any action or proceeding. (Code Civ. Proc. § 1032(b).) Therefore, the prevailing party is entitled to all of his costs unless another statute provides otherwise. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 129.) Here, Plaintiffs asserted eight causes of action against the Soderling and Ridgeway Defendants, and the Soderling and Ridgeway Defendants prevailed on all eight causes of action. Judgment was entered in favor of the Soderling and Ridgeway Defendants as to the first through sixth causes of action, and the seventh cause of action, as applicable, and the eighth cause of

		action was dismissed. (ROA 2842, Declaration of Aaron M. McKown ("McKown Decl."), ¶¶ 2, 5, 13, Exs. A and L.) Thus, they are the prevailing parties as they are defendants against Plaintiffs did not recover any relief, and are entitled to costs. Plaintiffs do not dispute that they are the prevailing parties. Taxing All Costs Initially, the Memorandum of Costs claimed total costs in the amount of $149,267.71. In their opposition, the Soderling and Ridgeway Defendants correct this amount and request a total of $139,492.30 in costs. First, as discussed in the motion to tax directed at NCAA, to the extent that Plaintiffs argue that the entire Memorandum of Costs should be taxed or stricken on the grounds that the Soderling and Ridgeway Defendants did not attach invoices, receipts, declarations, itemized summaries, or any meaningful explanation sufficient to permit judicial review, NCAA is not required to do so. (Jones, supra, 63 Cal.App.4th at p. 1267.) Second, to the extent that Plaintiffs seek to tax all costs claimed on the ground that the Soderling and Ridgeway Defendants did not distinguish between costs incurred in what Plaintiffs describe as "Phase I" and "Phase II", Plaintiffs fail to show that the Soderling and Ridgeway Defendants would have incurred costs for the bench trial and jury trial. Additionally, the Soderling and Ridgeway Defendants provide that they were not parties to the bench trial, incurred no costs related to the bench trial, and thus, that none of the costs identified in their Memorandum of Costs relate to the bench trial. (McKown Decl., ¶ 4.) As such, there is no need to distinguish costs as between the bench trial and jury trial. Based on the foregoing, Plaintiffs' request to tax the entire cost memorandum is DENIED. Item Nos. 1, 5, and 14

		In their motion, Plaintiffs do not separately identify objections to Item No. 1 (filing and motion fees in the amount of $7,182.13), Item No. 5 (service of process costs in the amount of $2,604.90), or Item No. 14 (electronic filing and service fees in the amount of $406). As such, the Memorandum of Costs is prima facie evidence of their propriety, and Plaintiffs fail to meet their burden as the parties seeking to tax costs to show these costs were not reasonable or necessary. Thus, the Court DENIES Plaintiffs' motion to tax as to Item Nos. 1, 5, and 14. Item No. 4 – Deposition costs Plaintiffs contend that the Soderling and Ridgeway Defendants failed to demonstrate that their claimed deposition costs in the amount of $19,624.47 were reasonable and necessary as they provide no explanation identifying which depositions are included, when the depositions occurred, whether the claimed costs relate to transcripts, video, real time reporting, expedited services, or rough drafts, whether the depositions related to the bench trial or jury trial, or whether the same deposition costs are also being sought by NCAA or Tieback. The Soderling and Ridgeway Defendants provide that they misclassified some of the costs. Specifically, they provide that deposition costs (Item No. 4) actually total $28,175.47, as it appears that some of the deposition costs were misclassified in the total for Item No. 9. (McKown Decl., ¶ 6.) They assert that the deposition costs fall into two groups, and that the deposition costs are expressly allowable under Code of Civil Procedure section 1033.5(a)(3)(A) and were reasonable and necessary for their defense in this action. Code of Civil Procedure section 1033.5(a)(3)(A) and (a)(3)(C) expressly allow costs for taking, video recording and transcribing necessary depositions, as well as travel expenses to attend depositions. This includes the cost of videotaping depositions even

		though they are not used at trial. (Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557, 1560.) “Standard transcription fees for ‘necessary’ depositions are recoverable, but the extra cost for expediting transcripts may be allowed only in the exercise of the trial court’s discretion. [Citations.]” (Hsu v. Semiconductor Systems, Inc. (2005) 126 Cal.App.4th 1330, 1342; see also Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 55 [finding the extra cost to expedite the deposition transcript to be proper where motions in limine had to be exchanged the next day and trial was scheduled to start within less than two weeks]; Heller v. Pillsbury Madison & Sutro (1996) 50 Cal.App.4th 1367, 1396 [finding trial court did not abuse its discretion in awarding costs for expedited deposition transcripts where nine expert witnesses were deposed less than a month before trial and recognizing that expert witnesses are customarily deposed soon before the trial date, necessitating expedited transcripts].) The Soderling and Ridgeway Defendants provide that they deposed five witnesses: (1) Plaintiff Kimberly Jones; (2) Plaintiff 150 NCD; (3) Plaintiffs’ counsel, Lee Kolodny individually and as the PMK for Barnes & Thornburg; (4) Rich McCay as the PMK for Defendant Tieback Holdings; and (5) Plaintiffs’ designated expert, Jay Hibert. (McKown Decl., ¶ 5.) They also provide that these depositions were necessary and were critical in allowing them to obtain summary adjudication and pre-trial dismissal of several claims and to prevail on the four fraud-based claims at the conclusion of the jury trial, as well as that the transcripts were used repeatedly throughout the jury trial to impeach Ms. Jones and Mr. Kolodny, and to lock Mr. Hibert into opinions that actually helped the Soderling and Ridgeway Defendants prove that the representations alleged were true or reasonable. (Ibid.) They provide that the deposition costs for these five deponents totaled $14,967.32, which is supported by

		the invoices attached, including costs for a late cancellation fee as a result of Plaintiffs' prior counsel's last-minute cancellation of Mr. Hibert's original deposition and a separate non-appearance fee when Mr. Hibert failed to appear at his conducted deposition. (McKown Decl., ¶ 5, Ex. B.) Based on the foregoing, the cost for these five depositions were reasonably necessary to the conduct of the litigation and reasonable in amount. The Soderling and Ridgeway Defendants also provide that the remainder of the deposition costs were incurred as a result of the 15 deposition that Plaintiffs noticed, which totaled $13,208.15, and is supported by invoices, and excludes interest charges ($68.16). (McKown Decl., ¶ 6, Ex. C.) Based on the foregoing, the cost for Plaintiffs' 15 depositions were reasonably necessary to the conduct of the litigation and reasonable in amount. Based on the foregoing, the Court DENIES the motion to tax as to the revised total amount for deposition costs of $28,175.47 ($14,967.32+$13,208.15). Item No. 9 – Court-ordered transcripts Plaintiffs contend that the Soderling and Ridgeway Defendants failed to meet their burden to establish that their claimed transcript costs in the amount of $35,754.81 are recoverable, reasonable, and necessary as they provide no meaningful information regarding the transcripts at issue, including the nature of the transcripts, the proceedings to which they relate, whether they were court ordered, whether they pertain to Phase I or Phase II proceedings, or whether they were reasonably necessary to the conduct of the litigation as opposed to merely convenient to counsel, as well as that they offer no invoices, declarations, receipts, or itemized records substantiating their request for more than $35,000 in transcript-related costs. The Soderling and Ridgeway Defendants provide that the balance of Item No. 9 should have been classified

		as Item No. 11 for court reporter fees as established by statute which is allowable under Code of Civil Procedure section 1033.5(a)(11). (McKown Decl., ¶ 7.) They therefore provide that with the reallocation of some of the deposition costs and eliminating the transcript cost, the amount allowable under Item No. 11 is $17,370.00, and that these costs were reasonable and necessary. As a threshold matter, based on the above, the Soderling and Ridgeway Defendants have reclassified costs originally designated as court-ordered transcripts (Item No. 9) in the Memorandum of Costs, as deposition costs (Item No. 4) and court reporter fees as established by statute (Item No. 11), such that there are no costs for court-ordered transcripts (Item No. 9). Code of Civil Procedure section 1033.5, subdivision (a) sets forth the items that are allowable as costs. Costs are allowable if incurred, whether or not paid, and allowable costs shall be reasonable in amount and "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc. § 1033.5(c)(1)-(3).) "[A]ny award of costs – whether categorically recoverable under section 1033.5, subdivision (a) or allowable in the court's discretion under section 1033.5(c)(4) – must meet the requirements of subdivision (c)(2) and (3)." (Segal v. Asics Am. Corp. (2022) 12 Cal.5th 651, 667.) Court reporter fees as established by statute are allowable as costs. (Code Civ. Proc. § 1033.5(a)(11).) Government Code section 68086 provides for recovery of costs for the services of a court reporter, as set forth above in the motion to tax directed at NCAA. Code of Civil Procedure section 1033.5(a)(11) allows court reporter fees as established by statute. Court reporter fees under Section 1033.5(a)(11) are distinguishable from transcripts. (See Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 58 [finding court reporter fees are an entirely different expense from "transcripts of court

		proceedings not ordered by the court," noting that the parties have to pay the court reporter regardless of whether anyone orders transcripts, and affirming order denying motion to tax costs].) Code of Civil Procedure section 1033.5(b)(5) disallows "transcripts of court proceedings not ordered by the court," unless expressly authorized by law. Here, the Soderling and Ridgeway Defendants provide that removing the transcript costs and limiting the expenses only to the court reporters' fees, the recoverable, allowable court reporter costs for the jury trial are $17,070, and that the allowable cost of the court reporter for the one ex parte hearing is $300, resulting in a total of $17,370 for Item No. 11. (McKown Decl., ¶ 8, Exs. D and E.) However, the 10 invoices attached to the McKown Declaration indicate that the corrected total claimed includes transcript costs. There is no evidence showing that transcripts for trial or an ex parte hearing were ordered by the court, or that they are expressly authorized by law. Accordingly, the Soderling and Ridgeway Defendants are not entitled to costs for transcripts, and are only entitled to court reporter fees. In reviewing the invoices, it appears that the court reporter fee for invoices INV3387214, INV 3408130, and INV3416199 was $500 each invoice, totaling $1,500 for these three (3) invoices, and that the court reporter for invoices INV3407930, INV3401281, INV3405150, INV3405423, INV3410318, INV3413155, and INV3413426 was $250 each invoice, totaling $1,750 for these seven (7) invoices. (Ex. D to McKown Decl.) The $300 court reporter fee for the ex parte hearing is correct. (Ex. E to McKown Decl.) Therefore, the costs for court reporter fees to which the Soderling and Ridgeway Defendants would be entitled to under Code of Civil Procedure section 1033.5(a)(11) is $3,550.

		Based on the foregoing, the Court DENIES the motion to tax as to $3,550 for court reporter fees (Item No. 11). The Court GRANTS the motion to tax as to $13,820 ($17,370 - $3,550). Item No. 13 – Models, enlargements, and photocopies of exhibits Plaintiffs contend that the Soderling and Ridgeway Defendants failed to meet their burden to establish that their claimed costs for models, enlargements, and photocopies of exhibits in the amount of $32,887.42 are recoverable, reasonable, and necessary. The Soderling and Ridgeway Defendants contend that Item No. 13 is comprised of three charges: (1) the photocopy charges for the witness and court exhibit binders; (2) the cost of the technology vendor needed to present the exhibits and deposition testimony to the jury; and (3) the cost to store the trial exhibits from the initial trial date through the end of trial, which total $32,945.82. It is noted that this is an increased amount from what was claimed in the Memorandum of Costs. They assert that the photocopy charges are expressly allowable while the other two costs were reasonable and necessary for trial and may be awarded within the discretion of the Court. Code of Civil Procedure section 1033.5(a)(13) allows for the recovery of costs for "[m]odels, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, . . . if they were reasonably helpful to aid the trier of fact." Section 1033.5(a)(13), encompasses exhibits filed in support of a motion. (Rozanova v. Uribe (2021) 68 Cal.App.5th 392, 405–406 [finding Section 1033.5(a)(13) may support an award of costs for photocopies of exhibits filed in support of a vexatious litigant motion].)

		A prevailing party is not entitled to recover costs associated with preparing photocopies of exhibits and demonstratives under section 1033.5(a)(13) if the items were not presented to the trier of fact. (Segal v. Asics Am. Corp. (2022) 12 Cal.5th 651, 665.) “[T]he most natural reading of section 1033.5(a)(13) and section 1033.5, subdivision (c)(2) is that the ‘reasonably helpful to aid the trier of fact’ clause (§ 1033.5(a)(13)) was not meant to capture all exhibit-related costs that were in some way helpful to the orderly and efficient conduct of the litigation — a consideration already accounted for in subdivision (c)(2) — but was instead more narrowly focused on the helpfulness of the demonstratives and photocopied exhibits to the adjudication of factual issues by the trier of fact.” (Id. at p. 663.) Exhibits and exhibit-related items, such as demonstrative slides prepared for closing argument, that were excluded from trial may be awarded in the trial court’s discretion. (Id. at pp. 667-667.) The trial court in its discretion may award costs incurred in preparing demonstratives and photocopies of trial exhibits, even though they were not ultimately used at trial, when such materials are reasonably necessary to the conduct of the litigation and reasonable in amount under section 1033.5(c)(4). (Id. at p. 665, 667.) Here, the Soderling and Ridgeway Defendants provide that they incurred costs for photocopies of exhibits for the jury trial which totaled $2,289.78, which is supported by an invoice. (McKown Decl., ¶ 9, Ex. F.) This cost is expressly allowed and appears reasonably necessary to the conduct of the litigation and reasonable in amount. Thus, the Court DENIES the motion to tax $2,289.78 for Item No. 13. The Soderling and Ridgeway Defendants also seek costs for a trial vendor and provide that they hired a trial vendor Gold Trial Services, LLC, in order to present exhibits, deposition transcripts, and videotaped deposition testimony to the jury, which cost totaled of $24,921.00. (McKown Decl., ¶ 10, Ex. G.)

		Exhibit costs that may not be authorized by Section 1033.5(a)(13), may still be allowed in the trial court's discretion pursuant to Code of Civil Procedure section 1033.5(c)(4). (Applegate v. St. Francis Lutheran Church (1994) 23 Cal.App.4th 361, 363-364.) "Use of such technology, including a technician to monitor the equipment and quickly resolve any glitches, has become commonplace, if not expected by jurors. [Citation.] The trial court did not abuse its discretion in allowing these costs as reasonably helpful to aid the jury. (Green v. County of Riverside (2015) 238 Cal.App.4th 1363, 1373-1374.) Where trial technology enhanced counsel's advocacy and was reasonably necessary to the conduct of the litigation, a court acts within its discretion in allowing recovery of costs for trial technology consisting of trial video computer, powerpoint presentation and videotaped deposition synchronizing, and the cost of a trial technician, as well as costs for creating designated excerpts from deposition transcripts and video, converting exhibits to computer formats, and design and production of electronic presentations. (Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 990.) The Soderling and Ridgeway Defendants provide that both parties used technology vendors to present hundreds of exhibits to the jury and to impeach witnesses with their deposition transcripts, and that the vendor was critical in the presentation of counsel's opening and closing statement. (McKown Decl., ¶ 10.) Although this cost item not expressly authorized, this cost should be allowed in the Court's discretion as the cost for the trial vendor appears reasonably necessary to the conduct of the litigation and reasonable in amount. Thus, the Court DENIES the motion to tax $24,921.00 for Item No. 13. Finally, the Soderling and Ridgeway Defendants provide that the last group of expenses in Item No. 11 relates to the vendor expense they incurred to maintain electronically the trial exhibits as trial was originally

		set for June 7, 2021, and in order to prepare and maintain the trial exhibits in this case, counsel for the Soderling and Ridgeway Defendants began using a third party vendor (LexBe) in December 2020 to maintain the trial exhibits in a searchable and readily usable database. (McKown Decl., ¶ 11.) They provide that their small firm does not have any technology as software programs like Relativity which is prohibitively expensive for their firm. (Ibid.) They provide that this database was used for all matters that were set for trial and a monthly allocation report for each matter, including this case, was provided by the vendor; that the monthly cost for the database used for the trial exhibits in this case was \$89.61; and that there were a total of 64 months from when the database was first used based on the original trial date through the jury trial resulting in total costs of \$5,735.04. (Ibid., Ex. H-I.) This cost item is not expressly authorized, but does not appear reasonably necessary to the conduct of the litigation as opposed to convenient or beneficial to its preparation. Thus, the Court GRANTS the motion to tax \$5,735.04 for Item No. 13. In sum, the Court DENIES the motion to tax \$27,210.78, and GRANTS the motion to tax \$5,735.04 for Item No. 13. Item No. 15 – Other Plaintiffs contend that the Soderling and Ridgeway Defendants failed to support the "Other" category which seeks \$50,807.98 in unidentified "Other" costs. Plaintiffs assert that Defendants provide no explanation regarding the nature of these expenses, when they were incurred, whether they relate to the bench trial or jury trial, or whether the same costs are also being sought by other defendants in this action, such that the request is insufficient to permit meaningful judicial review. The Soderling and Ridgeway Defendants provide that they are entitled fees and costs of up \$50,000 pursuant to Corporations Code section 17709.02(c)(1) as ordered

		by Judge Gastelum when he ordered Plaintiffs provide a bond in that amount, which Plaintiffs did, plus \$807.98 for some of the parking costs and mileage expense to travel to and park at the court during the 12-day jury trial, pursuant to Code of Civil Procedure section 1033.5(c)(4). Items not mentioned in Code of Civil Procedure section 1033.5 may be allowed or denied in the court's discretion. (Code Civ. Proc. § 1033.5(c)(4).) "[A]ny award of costs – whether categorically recoverable under section 1033.5, subdivision (a) or allowable in the court's discretion under section 1033.5(c)(4) – must meet the requirements of subdivision (c)(2) and (3)." (Segal v. Asics Am. Corp. (2022) 12 Cal.5th 651, 667.) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation, and shall be reasonable in amount. (Code Civ. Proc. § 1033.5(c)(2)-(3).) It appears that the Soderling and Ridgeway Defendants are seeking \$50,000 for attorney's fees incurred in defending against 150 NCD's derivative claim, citing to Corporations Code section 17709.02(c)(2). "[E]ach party to a lawsuit is responsible for his or her own attorney's fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]" (Pederson v. Kennedy (1982) 128 Cal.App.3d 976, 979.) Under Code of Civil Procedure section 1032, attorney's fees are recoverable as costs when authorized by statute. (Code Civ. Proc. § 1033.5(a)(10)(B).) " '[T]he [party] . . . seeking fees and costs " 'bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' [Citation.]" ' (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320, 81 Cal.Rptr.3d 866.) ' "To that end, the court may require [a] defendant[] to produce records sufficient to provide ' "a proper basis for determining how much

		time was spent on particular claims." ' [Citation.]" ' (Ibid.) 'The evidence should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended. [Citation.]' (Ibid.) "The law is clear, however, that an award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) The determination ordinarily begins with ascertainment of the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal.App.4th 770, 774; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 271-282 [discussing general principles governing attorney fee awards].) Here, Corporations Code section 17709.02(c)(2) states, in part, that "the moving party [to require the plaintiff to furnish a security] shall have recourse to the security in the amount that the court determines upon the termination of the action." (Corp. Code § 17709.02(c)(2).) This statute does not clearly provide for the recovery of attorney's fees, nor do the Soderling and Ridgeway Defendants cite to any authority supporting that Corporations Code section 17709.02(c)(2) permits recovery of attorney's fees as costs under Code of Civil Procedure section 1033.5. Thus, they do not meet their burden to show that they are entitled to attorney's fees under Corporations Code section 17709.02(c)(2). Additionally, the declaration and invoices provided by the Soderling and Ridgeway Defendants do not provide sufficient information to establish that the attorney's fees incurred were for defending against 150 NCD's derivative claim, or that the hourly rates for each timekeeper are reasonable, to support $50,000 in attorney's fees. Further, the invoices include charges for filing, which presumably would have been sought

		under Item No. 1 as filing and motion fees and therefore would be duplicative. Based on the foregoing, the Court GRANTS the motion to tax $50,000 from Item No. 15. Lastly, the Soderling and Ridgeway Defendants provide that the balance of this category ($807.98) is for some of the parking costs and mileage expense to travel to and park at the Court during the 12-day jury trial, and that this amount is less than the actual amount incurred, as the parking costs alone for Mr. McKown, Mr. Ridgeway, Mr. Biram (the trustee of the Soderling Trust), and Giovanna Castro-Kalagian totaled $908.00. (McKown Decl., ¶ 16, Ex. O.) They provide that the attendance of each of these individuals was necessary at trial. Though not expressly allowed or expressly disallowed, the parking charges alone appear reasonably necessary to the conduct of the litigation and reasonable in amount. The Court DENIES the motion to tax $807.98 from Item No. 15. Plaintiffs to give notice of all motions.